

22STCV13577 22STCV13577

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Division: Civil Law and Motion

Department: 517

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Case Number: 22STCV13577 Hearing Date: September 9, 2026 Dept: 517

The Court is granting the motion of Plaintiffs Jesus Favela and Sonia Favela ("the Favelas") to tax \$5,558.33 of the costs set forth in Defendant Dalia Motor Group dba Diamond Ford ("DMG").

DMG prevailed on the Favelas claim against it for negligent repair. That claim was dismissed when the Court granted DMG's motion for judgment on the pleadings. Thus, DMG is entitled to recover certain of its costs.

The Court agrees with the Favelas, however, that the items on DMG's memorandum of costs that are the subject of the Favelas' motion should be taxed.

Two of those items are for the costs of transcripts of the depositions of co-Defendant Ford Motor Company's ("Ford") Persons Most Knowledgeable totaling \$2010.70. In the Court's view, DMG has not shown that these costs were reasonably necessary for the conduct of DMG's defense of the Favelas' negligent repair claim against it. The deponents offered testimony bearing on the Favelas' claims against Ford. Ford is not the prevailing party vis-a-vis the Favelas. The Favelas are.

Another item is \$616.50 for the costs of an expedited transcript of the deposition of the Favelas' expert. Here too, DMG has not shown the reasonable necessity of this cost.

The Favelas also seek to tax \$900 in fees paid to their expert. DMG has not shown that it was reasonably necessary for DMG to bear this cost, as opposed to Ford, which faced more claims than DMG to which the expert would opine.

Finally, the Favelas target \$2,031.13 in court reporter costs for trial and a final status conference on May 12, 2025. The trial was continued on that date and then never happened because the Favelas claim against DMG was dismissed when the Court granted DMG's motion for judgment on the pleadings and because the Favelas settled their claims against Ford. The preparation of the trial-readiness documents that were discussed at the final status conference on May 12, 2025 related primarily to the Favelas' claims against Ford. DMG has not shown that it was reasonably necessary that it pay for the court reporter, as opposed to Ford.

On a side note, the Court apologizes to the parties and counsel for inadvertently vacating the initial hearing on the Favelas' motion to tax costs when the Favelas' motion for attorney's fees was taken off calendar due to the settlement between the Favelas and Ford.